



CHAPTER lxxxi.

An Act to extend the boundaries of the borough of Neath to confer upon the Corporation of the borough further powers with respect to their water gas electricity markets and slaughter-houses undertakings to make better provision for the health local government and finance of the borough and for other purposes. A.D. 1922.
[4th August 1922.]

WHEREAS the borough of Neath in the county of Glamorgan (in this Act called "the borough") is subject to the Acts relating to municipal corporations and is under the government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council :

And whereas the several local Acts and Provisional Orders confirmed by Parliament mentioned in the First Schedule to this Act (save so far as any of them is amended by any later Act or Order among the same) are subject as hereinafter recited in force within the borough which Acts and Orders are in this Act referred to collectively as "the former Acts" and each of them separately as an Act or Order of the year in which the same was passed or made :

And whereas by the Order of 1921 it was provided that the boundary of the borough should be altered so as to include in addition to other areas the part of the urban district of Briton Ferry in the said Order described or referred to as "the added part of Briton Ferry" and

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A.D. 1922. that the urban district council of Briton Ferry should be
abolished :

And whereas the part of the urban district of Briton Ferry not by the Order of 1921 added to the borough is described in Part III. of the Second Schedule to this Act and is in this Act referred to as "the remainder of Briton Ferry" :

And whereas by the Ministry of Health Provisional Orders Confirmation (Aberavon and Neath Extension) Act 1921 it was provided that the Order of 1921 should come into operation on the ninth day of November next following the date upon which an Act should be passed into law adding to the borough the remainder of Briton Ferry :

And whereas it is expedient that the borough should be extended so as to include the remainder of Briton Ferry :

And whereas it is also expedient that the borough should be extended so as to include the part of the borough of Port Talbot which is described in Part III. of the Second Schedule to this Act :

And whereas it is expedient that the provisions with regard to the water gas electricity and markets undertakings of the Corporation set forth in this Act should be enacted :

And whereas it is expedient that further and better provision should be made for the local government health and improvement of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended :

And whereas it is expedient that further borrowing powers for the purposes of this Act and for the other purposes hereinafter referred to should be conferred upon the Corporation :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):— A.D. 1922.

PART I.

PRELIMINARY.

1. This Act may be cited as the *Neath Corporation Act 1922.* Short title.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

- Part I.—Preliminary.
- Part II.—Extension of Borough.
- Part III.—Water.
- Part IV.—Gas.
- Part V.—Electricity.
- Part VI.—Streets.
- Part VII.—Buildings.
- Part VIII.—Sanitary Provisions.
- Part IX.—Human Food.
- Part X.—Infectious Diseases.
- Part XI.—Sewers and Drains &c.
- Part XII.—Markets and Slaughter-houses.
- Part XIII.—Police and Hackney Carriages.
- Part XIV.—Finance.
- Part XV.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(b) Sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) Section 83 (with respect to the yearly receipt and expenditure of the undertakers):

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(2) The Waterworks Clauses Act 1863 :

(3) The Gasworks Clauses Act 1847 Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

"The appointed day" means the ninth day of November one-thousand nine hundred and twenty-two;

"The existing borough" means the borough of Neath as existing immediately before the appointed day;

"The extended borough" means the existing borough as extended by this Act;

"The borough" means until the appointed day the existing borough and thereafter the existing borough as extended by the Order of 1921 and by this Act;

"The Corporation" means the mayor aldermen and burgesses of the borough;

"The council" means the council of the borough;

"The borough fund" and "the borough rate" mean respectively the borough fund and the borough rate of the borough;

"The town clerk" "the treasurer" "the surveyor" "the medical officer" and "the sanitary inspector" mean respectively the town clerk the treasurer the surveyor and the medical officer of health of the borough and any sanitary inspector appointed by the Corporation in pursuance of the powers of the former Acts of this Act or any public Act and respectively

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include any person duly appointed by the Corporation to discharge temporarily the duties of any of such officers;

“The county” means the administrative county of Glamorgan and “the county council” means the county council of the county;

“The Port Talbot Corporation” means the mayor aldermen and burgesses of the borough of Port Talbot acting by the council;

“The Briton Ferry District” and “the Briton Ferry Council” mean respectively the urban district of Briton Ferry and the urban district council of that district;

“The remainder of Briton Ferry” means the part of the Briton Ferry District described in Part III. of the Second Schedule to this Act;

“The added part of Port Talbot” means the part of the borough of Port Talbot described in Part III. of the Second Schedule to this Act;

“The added areas” means the remainder of Briton Ferry and the added part of Port Talbot;

“The parish of Neath” means that parish as altered by the Order of 1921 and by this Act;

“The parish of Port Talbot” means the existing parish of Port Talbot as altered by this Act;

“Existing” in relation to any parish district or other area means existing immediately before the appointed day;

“The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same and “the Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

“The Act of 1907” and “the Act of 1918” mean respectively the Public Health Acts Amendment Act 1907 and the Representation of the People Act 1918;

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- “ The borough map ” means the map marked “ Map of the borough of Neath as altered by the “ Neath (Extension) Order 1921 and the Neath “ Corporation Act 1922 ” and signed in triplicate by Sir William Middlebrook the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which copies are to be deposited as mentioned in the section of this Act of which the marginal note is “ Deposit of maps ” ;
- “ The ward map ” means the map marked “ Map of “ the wards of the borough of Neath as altered “ by the Neath Corporation Act 1922 ” and signed in triplicate by Sir William Middlebrook the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which copies are to be deposited as mentioned in the section of this Act of which the marginal note is “ Deposit of maps ” ;
- “ The former Acts ” means the unrepealed provisions of the Acts and Provisional Orders mentioned in the First Schedule to this Act ;
- “ The water undertaking ” means the water undertaking of the Corporation as authorised by the former Acts and by this Act ;
- “ The water limits ” means the limits within which the Corporation are for the time being authorised to supply water to consumers ;
- “ Water revenue ” means all moneys received by the Corporation in respect of the water undertaking other than borrowed moneys and other moneys which ought to be carried to the account of capital ;
- “ The gas undertaking ” means the gas undertaking of the Corporation as authorised by the former Acts and by this Act ;
- “ The gas limits ” means the limits within which the Corporation are for the time being authorised to supply gas to consumers ;
- “ Gas revenue ” means all moneys received by the Corporation in respect of the gas undertaking other than borrowed moneys and other moneys which ought to be carried to the account of capital ;

“The electricity undertaking” means the electricity undertaking of the Corporation authorised by the former Acts and this Act;

“The markets and slaughter-houses undertaking” means the markets and slaughter-houses undertaking of the Corporation as authorised by the former Acts and this Act:

“Daily penalty” means in Parts III. to XIII. (inclusive) of this Act a penalty for each day on which an offence is continued after conviction thereof;

“Hackney carriage” has the same meaning as in the Town Police Clauses Act 1847 and does not include an omnibus as defined in the Town Police Clauses Act 1889;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of—

(a) borrowing or continuing on loan or re-borrowing money; or

(b) redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

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PART II.

EXTENSION OF BOROUGH.

Commence-
ment of
Part II. of
Act.

5. This Part of this Act shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the appointed day :

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and twenty-two and of the revision of the basis or standard of the county rate of the county this Part of this Act shall operate from the first day of August one thousand nine hundred and twenty-two.

Extension
of borough.

6.—(1) The boundary of the existing borough shall be altered so as to include in addition to the area of the existing borough the remainder of Briton Ferry and the added part of Port Talbot.

(2) The existing borough as extended by the Order of 1921 and by this Part of this Act is delineated on the borough map and described in the Second Schedule to this Act and if there shall be any discrepancy between the borough map and the said description the said description shall prevail. Notice of this provision shall be set forth on the borough map.

Alteration
of parishes.

7.—(1) On the appointed day the added areas shall be amalgamated with the existing parish of Neath.

(2) Section 6 (Parochial alterations) of the Order of 1921 shall have effect as if the words “ and shall for the purpose of the election of rural district councillors be a separate ward of that parish to be named the Tonna Ward and the existing parish of Clyne shall for the purpose aforesaid become and be a separate ward of the parish of Clyne to be named the East Clyne Ward ” were added at the end of that section.

Deposit of
maps.

8.—(1) The borough map and the ward map respectively shall within two weeks after the passing of this Act be deposited as to one copy in the Office of the Clerk of the Parliaments in the House of Lords as to another copy in the Private Bill Office of the House of Commons and as to the third copy with the town clerk at his office.

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(2) Copies of the borough map deposited with the town clerk certified by him to be true shall be sent within one month of the passing of this Act to the clerk of the county council to the town clerk of Port Talbot to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Electricity Commissioners to the Minister of Health and to the Minister of Agriculture and Fisheries and copies of the ward map so deposited and certified in like manner shall be sent within one month of the passing of this Act to the Registrar-General to the Minister of Health and to the Minister of Agriculture and Fisheries.

(3) Copies of or extracts from the borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

9.—(1) Subject to the provisions of this Part of this Act the powers rights privileges authorities and duties of the Corporation as a municipal body and of the Corporation acting by the council as the sanitary authority for the district of the existing borough and of the Corporation acting in the execution of the former Acts and of all officers and servants of the Corporation in their respective official capacities shall as from the appointed day extend to and throughout the extended borough.

Authority
of Corpo-
ration
extended.

(2) Subject to the provisions of this Part of this Act the powers rights privileges authorities and duties of the Port Talbot Corporation and the Briton Ferry Council shall as from the appointed day cease to be exerciseable by or attach to that corporation and that council so far as regards the added areas. Provided that any provisions in any local Act or Order confirmed by Parliament or in any light railway order for the benefit or protection of the Port Talbot Corporation or the said council so far

A.D. 1922. as they relate to or affect the added areas shall from and after the appointed day enure for the benefit and protection of the Corporation.

Powers and duties of justices &c. extended.

10.—(1) The powers and duties of the justices of the peace appointed for the existing borough and of the clerk to those justices and of the police constables and other peace officers of the existing borough shall extend to and apply throughout the extended borough.

(2) Provided that every person committing an offence in any part of the added areas prior to the appointed day shall be tried adjudicated on and dealt with as if this Act had not been passed.

(3) Provided also that every proceeding which prior to the appointed day has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

Application of County and Borough Councils (Qualification) Act 1914.

11. For the purposes of the application to the borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the borough.

Number of councillors and aldermen.

12. The number of councillors of the borough shall be increased from twelve to eighteen and the number of aldermen of the borough shall be increased from four to six.

Division into wards.

13. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

- (1) For the purposes of the election of councillors the borough shall be divided into three wards which shall respectively be named the Briton Ferry Ward the Neath North Ward and the Neath South Ward :
- (2) Each of the said wards shall comprise that portion of the borough which is indicated by a separate colour and distinguished by the name of the ward on the ward maps :
- (3) Six councillors shall be assigned to each of the said wards.

14. For the purposes of the election of a town council for the borough in pursuance of the Municipal Corporations Acts in the month of November one thousand nine hundred and twenty-two the following provisions shall apply :—

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Election of
councillors
and alder-
men in 1922.

(a) The town clerk and the mayor of the existing borough or such other persons as the Minister of Health shall appoint shall perform the duties devolving upon the town clerk and mayor respectively under the Municipal Corporations Acts and the mayor of the existing borough shall be the returning officer at the election for all the wards. Provided that the mayor of the existing borough may appoint some other person to act as returning officer at the election for any of the wards :

(b) Eighteen councillors of the borough shall be elected on the first day of November one thousand nine hundred and twenty-two and six aldermen of the borough shall be elected on the ninth day of November one thousand nine hundred and twenty-two :

(c) Notwithstanding anything in the Municipal Corporations Acts all the councillors of the existing borough who shall be in office immediately before the first day of November one thousand nine hundred and twenty-two shall go out of office on that day and all the aldermen of the existing borough who shall be in office immediately before the ninth day of November one thousand nine hundred and twenty-two shall go out of office on that day and all the said councillors and aldermen shall be eligible for election as councillors of the borough on the first day of November one thousand nine hundred and twenty-two.

15.—(1) The councillors elected for the borough in the year one thousand nine hundred and twenty-two for each ward constituted by this Part of this Act shall retire as follows :—

Retirement
of coun-
cillors and
aldermen
elected in
1922.

(a) The two councillors elected by the smallest number of votes on the first day of November one thousand nine hundred and twenty-three ;

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(b) The two councillors elected by the largest number of votes on the first day of November one thousand nine hundred and twenty-five;

(c) The other two councillors on the first day of November one thousand nine hundred and twenty-four.

(2) The aldermen elected for the borough in the year one thousand nine hundred and twenty-two in pursuance of this Part of this Act shall retire as follows:—

(a) The three aldermen elected by the smallest number of votes on the ninth day of November one thousand nine hundred and twenty-five;

(b) The other three aldermen on the ninth day of November one thousand nine hundred and twenty-eight.

(3) Provided that if for any reason it is doubtful which of the councillors or aldermen as the case may be ought to retire on the dates above specified the council shall at their first quarterly meeting after such doubt arises by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the councillors or aldermen as the case may be shall go out of office on the dates above specified respectively.

Town clerk
and other
officers
continued.

16. The town clerk and all other officers and servants of the Corporation of the existing borough who hold office on the appointed day shall continue to be the town clerk and officers and servants of the Corporation of the borough and shall hold their offices by the same tenure as at that day.

Borough
auditors.

17. The auditors of the existing borough who are in office on the appointed day shall continue in office for such period as may be necessary to enable them to complete the audit of the accounts of the Corporation of the treasurer and of their officers for the financial year ending on the thirty-first day of March one thousand nine hundred and twenty-three and while in office shall for the purposes of those accounts be the borough auditors.

Compensa-
tion to
existing
officers.

18.—(1) Every clerk to justices and every officer or servant of or paid by the county council or of or paid by the standing joint committee of the county and every

other officer or servant who by virtue of this Part of this . A.D. 1922.
Act or of anything done in pursuance or in consequence
thereof suffers any direct pecuniary loss by abolition of
office or by diminution or loss of fees or salary and for
whose compensation no other provision is made by any
enactment for the time being in force and applicable to
his case shall be entitled to have compensation paid to
him by the Corporation for that pecuniary loss.

(2) In determining the compensation payable to any
person who becomes entitled to compensation in pur-
suance of this section regard shall be had to the conditions
and circumstances mentioned in subsection (1) of section
120 of the Act of 1888 and the compensation shall not
exceed the limit therein mentioned :

Provided that for the purposes of this section the
expression " the Acts and rules relating to Her Majesty's
" Civil Service " in subsection (1) of the said section 120
shall mean the Acts and rules relating to Her Majesty's
Civil Service which were in operation at the date of the
passing of the Act of 1888 :

Provided also in determining the compensation
payable to any person under this section service under
the Corporation or under the local authority of any of
the added areas may be aggregated with any service
under the Corporation if the council so determine.

(3) Any person who devotes his whole time to two
or more offices held under any local authority (as defined
by section 34 of the Local Loans Act 1875) or local
authorities and who becomes entitled to compensation
in pursuance of this section may for the purposes of this
section and in respect of the offices or each of the offices
(as the case may be) held by him be deemed to be a
whole-time officer employed at the net salary or remunera-
tion (after deducting any expenses or payments for assist-
ance or otherwise) received by him in respect of that
office.

(4) Where any such officer as aforesaid was tem-
porarily absent from his employment while serving in
His Majesty's forces or the forces of the allied or associated
Powers either compulsorily or with the sanction or per-
mission of the local authority during the war such period
of temporary absence shall also be reckoned as service
under the local authority in whose employment he was

A.D. 1922. — immediately before and after such temporary absence and the amount of his salary wages and emoluments during such temporary absence shall be deemed to be the amounts which the officer would have received from the local authority during that period if he had remained in the actual service of the authority. Provided that this subsection shall not apply to any officer who after the Armistice voluntarily extended his term of service in the forces.

(5) Any compensation payable to any officer or servant shall be paid out of the borough fund and borough rate and the provisions of subsections (2) to (7) of section 120 of the Act of 1888 shall apply with the necessary modifications.

(6) The non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(7) If any officer or servant to whom this section applies is at any time within five years after the appointed day required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which he is required to perform at the appointed day he may within that period relinquish his office and any officer or servant who so relinquishes his office shall be entitled to compensation in accordance with the provisions of this section.

(8) For the purposes of subsection (1) of this section any clerk to justices officer or servant to whom that subsection applies and whose services are dispensed with or whose salary is reduced by the county council or the standing joint committee of the county or any other authority including the Corporation within five years from the appointed day because his services are not required or his duties are diminished in consequence of this Part of this Act and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Part of this Act.

(9) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

19.—(1) Every vestry clerk assistant overseer collector of poor rates or other officer or servant employed at the appointed day in or for the purposes of any existing parish included in the area of the extended borough for the purposes of or in connection with the assessing levying or collection of rates, or otherwise shall be transferred to and become officers or servants of the Corporation but the Corporation may abolish the office or employment of any such officer or servant whose office or employment they deem unnecessary.

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Transfer of
assistant
overseers
and other
officers.

(2) If any officer of any authority to which the Poor Law Officers' Superannuation Act 1896 applies is under this Part of this Act transferred to the Corporation and has made the annual contribution required to be made under that Act the provisions of that Act shall apply subject to such modifications as the Minister of Health may by order direct for the purpose of making that Act applicable to the case. Provided that "emoluments" shall mean the net pecuniary gain or profit (after deducting any expenses or payments for assistance or otherwise) accruing to or made by the officer by reason of or from his office.

(3) The contributions which have been made by any such officer as aforesaid for the purpose of the Poor Law Officers' Superannuation Act 1896 shall be paid to the Corporation by the guardians from whose service he shall be transferred to the service of the Corporation.

(4) The provisions of subsections (1) to (9) inclusive of the section of this Act of which the marginal note is "Compensation to existing officers" shall with the necessary modifications apply with respect to every officer transferred under this section. Provided that no such officer as aforesaid shall be entitled to claim or receive both compensation under the provisions of the said section and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

20. Any action or proceeding or any cause of action or proceeding which at the appointed day is pending or existing by or against the Port Talbot Corporation or the Briton Ferry Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the passing of this

Actions &c.
not to
abate.

A.D. 1922. Act but may be continued prosecuted and enforced by or against the Corporation.

Saving for
contracts
&c.

21. Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the appointed day) entered into or made by the Port Talbot Corporation or the Briton Ferry Council in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the Port Talbot Corporation or the Briton Ferry Council the Corporation had done or suffered the same or been a party thereto.

Corporation
property
&c.

22. Subject to the provisions of this Part of this Act all property vested in the Corporation at the appointed day for the benefit of the existing borough shall by virtue of this Act be held by the Corporation for the benefit of the borough and all liabilities which on the appointed day attach to the Corporation in respect of the existing borough shall from and after that day attach to them in respect of the borough.

Mortgage
debts of
Corporation.

23. So much of any sums borrowed by the Corporation as will at the appointed day be owing and charged upon the borough fund and borough rate of the existing borough shall by virtue of this Act be charged upon the borough fund and borough rate of the borough and shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Local Acts.

24. Subject to the provisions of this Act the former Acts and the unrepealed provisions of any other local Act (including any local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing borough or the Corporation as the same respectively are in force within the existing borough on the appointed day shall extend and apply to the extended borough and any reference therein to the existing borough and the Corporation shall be deemed to refer to the borough and the Corporation.

25.—(1) The provisions of the following Acts A.D. 1922.
(namely) :—

The Infectious Disease (Prevention) Act 1890;
The Public Health Acts Amendment Act 1890; and
The Public Libraries Acts 1892 to 1919;

Adoptive
Acts.

shall be in force in and apply to the borough as if the same had been adopted for the borough.

(2) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subsection (1) of this section which is in force on the appointed day throughout the existing borough shall extend and apply to the added areas and any such order in force on the appointed day in the added areas shall save as hereinbefore provided cease to be in force in those areas.

(3) The provisions of the Private Street Works Act 1892 shall cease to be in force in and apply to any part of the added areas.

26. The Aberavon Market Act 1848 and the Aber-^{Port Talbot}
avon Local Board Act 1866 as amended by any Provisional ^{local Acts}
Order made by the Local Government Board and con- ^{and Orders.}
firmed by Parliament and the Port Talbot (Extension)
Order 1921 scheduled to and confirmed by the Ministry
of Health Provisional Orders Confirmation (Aberavon and
Neath Extension) Act 1921 shall cease to be in force in
or apply to the added part of Port Talbot and the added
part of Port Talbot shall be excluded from the limits of
the Port Talbot Corporation for the supply of gas and
water.

27. Subject to the provisions of any order which the Minister of Health or the Secretary of State may make after the appointed day :—

Powers
under
section 33
or 34 of Act
of 1894 and
under Act
of 1907.

(1) The provisions of any order made before the appointed day under section 33 or section 34 of the Act of 1894 on the application of the Corporation shall have effect as if any reference in those provisions to the existing borough and the existing parish of Neath extended and applied to the borough and the parish of Neath as the case may be :

(2) An order may be made by the Minister of Health under section 33 of the Act of 1894 with respect

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to any charity held wholly or partly for the benefit of the inhabitants of any existing parish affected by this Part of this Act as if this Act had not been passed :

- (3) (a) The provisions of any order made before the appointed day and declaring to be in force in the existing borough any parts or sections of the Act of 1907 shall have effect as if any reference in those provisions to the existing borough extended and applied to the borough and as if the said parts or sections were accordingly declared to be in force in the borough ;

(b) The provisions of any order made before the appointed day and declaring to be in force in any part of the added areas any parts or sections of the Act of 1907 shall cease to apply to any such part and subject to the provisions of this Part of this Act the parts or sections declared by any such order to be in force shall cease to be in force in any such part.

Byelaws.

28. Subject to the provisions of this Part of this Act—

- (1) The byelaws made by the Corporation with respect to new streets and buildings which were confirmed by the Local Government Board on the eighth day of January one thousand nine hundred and with respect to new buildings which were confirmed by the Local Government Board on the thirteenth day of August one thousand nine hundred and seven shall for a period of one year from the appointed day extend and apply to the extended borough unless previously repealed or altered but on the expiration of the period aforesaid shall cease to be in force within any part of the extended borough :
- (2) Save as hereinbefore provided all byelaws made either by the Corporation or by the watch committee of the Corporation and every scale of charges made by the Corporation which on the appointed day are in force throughout the existing borough shall apply to the borough until such byelaws or scale of charges may be altered or repealed :

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(3) All byelaws made by the Port Talbot Corporation or the Briton Ferry Council or their predecessors and in force immediately before the appointed day in any part of the added areas shall on that day cease to be in force except as regards any work which has been begun before that day or as regards any work which has not been so begun but for which plans have been approved before that day by the council of the borough or district in which the part is situated or have been sent to the surveyor or clerk to that council one month at least before that day and have not been disapproved by the council :

(4) As regards any work within the exception in subsection (3) of this section the byelaws in force immediately before the appointed day shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the extended borough were referred to therein instead of the council of the borough or district in which the part is situated and that borough or district :

(5) All byelaws made by the county council or by the standing joint committee of the county and in force immediately before the appointed day in any part of the added areas shall in so far as byelaws to the like effect could be made by the Corporation or by the watch committee of the Corporation cease to be in force in such part

(6) Any proceedings which if this Act had not been passed might have been taken by the county council by the Port Talbot Corporation by the Briton Ferry Council or by the standing joint committee for any offence committed before the appointed day against any byelaws which by virtue of this section cease to be in force may be taken by the Corporation or the watch committee of the Corporation as if those byelaws had remained in force and the Corporation or the watch committee of the Corporation had been

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substituted therein for that council or the standing joint committee :

- (7) In this section the expression " byelaws " includes any regulation or order and the expression " scale of charges " includes any list of tolls or table of fees or payments.

Amend-
ment of
Article 18
of Order of
1921.

29. Subdivisions (2) (5) and (6) of Article 18 of the Order of 1921 are hereby repealed and the following subdivisions substituted for those subdivisions respectively (that is to say) :—

" (2) Save as hereinbefore provided all bye-laws made either by the Corporation or by the watch committee of the Corporation and every scale of charges made by the Corporation which at the commencement of this Order are in force throughout the existing borough shall apply to the borough until such byelaws or scale of charges may be altered or repealed :

" (5) All byelaws made by the county council or by the standing joint committee of the county and in force immediately before the commencement of this Order in any part of the added areas shall in so far as byelaws to the like effect may be made by the Corporation or by the watch committee of the Corporation cease to be in force in such part :

" (6) Any proceedings which if this Order had not been made might have been taken by the county council by the standing joint committee by the Aberavon Corporation by the Briton Ferry Council or by the rural council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation or the watch committee of the Corporation as if those byelaws had remained in force and the Corporation or the watch committee of the Corporation had been substituted therein for that council or the standing joint committee."

Orders
made under
Shop Hours
Act 1904
or Shops

30. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the appointed day in any area affected by

this Part of this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applies immediately before the appointed day.

A.D. 1922.
—
Acts 1912
to 1920.

31. For the purposes and subject to the provisions of the Education Act 1921 or pending the commencement of that Act the enactments thereby repealed any byelaws in force in the existing borough immediately before the appointed day shall from and after that day apply to the extended borough until revoked or altered and from and after that day any byelaws then in force in any part of the added areas shall cease to be in force.

Education.

32.—(1) On the appointed day such number of the members of the police force of the county as shall be determined by agreement to be made as soon as practicable after the passing of this Act subject to the approval of the Secretary of State between the standing joint committee of the county and the watch committee of the existing borough or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the borough :

County
police.

Provided that no member of the police force of the county shall be so transferred without his consent.

(2) Every member of the county police force so transferred shall hold office in the police force of the borough upon the same tenure and subject to the same terms and conditions as the other serving members of the borough police force and any period of service which he was entitled to reckon before such transfer for purposes of pay promotion or pension in the county police force shall be reckoned for the same purposes in the borough police force :

Provided that where the scale of ordinary pensions applicable to a member of the county police force who is so transferred is by virtue of section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I. of the First Schedule to that Act the scale applicable to him after transfer shall be the scale applicable to members of the borough police force who joined that force before first July one thousand nine hundred and nineteen and were serving in that force on the twenty-eighth August one thousand nine hundred and twenty-one.

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(3) The provisions of subsection (2) of section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of the police force transferred under the powers of this section as if that member had removed with the written sanction of the chief constable of the county and notwithstanding that at the date of the transfer such member may not have completed one year's approved service in the county police force.

County
coun-
cillors and
electoral
divisions.

33. Subject to the provisions of section 54 of the Act of 1888—

- (1) Three county councillors shall be apportioned to the borough:
- (2) The existing Neath (North) Neath (South) and Briton Ferry electoral divisions of the county shall be abolished and the borough shall be divided into three electoral divisions which shall be named respectively the Neath (Briton Ferry) the Neath (North Ward) and the Neath (South Ward) electoral division and shall be respectively co-terminous with the municipal wards of the borough constituted by this Part of this Act:
- (3) The county councillors who immediately before the appointed day represent respectively the existing Neath (North) Neath (South) and Briton Ferry electoral divisions shall continue in office for the period for which they would have continued in office if this Act had not been passed and shall be deemed to have been elected respectively for the Neath (North Ward) the Neath (South Ward) and the Neath (Briton Ferry) electoral divisions:
- (4) The Aberavon electoral division of the county shall be altered by the exclusion therefrom of the added part of Port Talbot and the person who immediately before the appointed day is the county councillor representing that electoral division shall continue to represent that division as so altered as if he had been originally elected to represent the same.

34. Subject to the provisions of this Part of this Act— A.D. 1922.

(1) All property and liabilities which immediately before the appointed day are vested in or attach to the Port Talbot Corporation as a municipal authority or an urban authority within the meaning of the Public Health Acts in relation exclusively to the added part of Port Talbot shall by virtue of this Act be transferred to and vest in the Corporation and shall as the case requires be held by the Corporation as the municipal authority or urban authority of the borough :

Property
&c. in added
areas.

(2) All property and liabilities which immediately before the appointed day are vested in or attach to the Briton Ferry Council in relation exclusively to any part of the added areas shall by virtue of this Act be transferred to and vest in the Corporation as urban authority within the meaning of the Public Health Acts :

(3) Any property and liabilities vested in or attaching to the Port Talbot Corporation and the Briton Ferry Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under section 62 of the Act of 1888.

35. Subject to the provisions of this Part of this Act all arrears of rates made by the Port Talbot Corporation or the Briton Ferry Council in respect of hereditaments in any part of the added areas and all other payments which at the appointed day are due or owing to the Port Talbot Corporation or the Briton Ferry Council in respect of any part of the added areas may be collected and recovered by the Corporation.

Sums due
to urban
councils.

36. For the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Part of this Act that section shall have effect—

Adaptation
of pro-
visions as
to adjust-
ments.

(a) As if in subsections (5) (6) and (7) thereof the expression " council " included any authority affected by this Part of this Act or by anything done in pursuance of this Part of this Act: and

A.D. 1922.
—

- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister of Health may sanction.

Parochial
adjust-
ments.

37. For the purposes of the application of section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Part of this Act so far as it relates to the abolition or the alteration of the area of any-existing parish that section shall have effect—

- (a) As if the overseers of the parishes of Neath and Port Talbot and the persons who immediately before the appointed day were the overseers of the existing parish of Briton Ferry or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the Minister of Health were within the meaning of the said section as applied by this section authorities affected by this Part of this Act;
- (b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Act were substituted for any fund mentioned in the section; and
- (c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended (that is to say):—

“(6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.”

“(7) Any capital sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Minister of Health may authorise or direct.” A.D. 1922.

38.—(1) All arrears of rates made by the overseers of the poor of the existing parish of Briton Ferry and due at the appointed day in respect of hereditaments in the remainder of Briton Ferry shall be collected and recovered by the overseers of the poor of the parish of Neath. Arrears of rates.

(2) All arrears of rates made by the overseers of the poor of the existing parish of Port Talbot and due at the appointed day shall be collected and recovered by the overseers of the poor of the parish of Port Talbot as if this Act had not been passed.

39.—(1) As soon as practicable after the appointed day the county council as regards any cash balance in their hands at the appointed day raised to meet expenditure on elementary education shall estimate the proportion thereof derived from contributions paid by each of the added areas and subject to a deduction on account of undischarged liabilities in respect of that added area accruing up to the appointed day shall transfer such amount to the Corporation. Apportionment of balances and sums received under precept.

(2) Any sum received after the appointed day under a precept relating to elementary education by the county council in respect of any area comprising one of the added areas shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sum received under a precept shall be subject to review on an adjustment under this Part of this Act.

40. Any balances standing in the books of the guardians of the poor of the Neath Union at the appointed day to the credit of the existing parish of Port Talbot and any balances owing by the existing parish of Port Talbot at that date shall be a matter for adjustment under section 62 of the Act of 1888. Balances in guardians' accounts.

41. Any balances in the hands of the overseers of the parish of Port Talbot immediately before the appointed day and any sum collected after that date by overseers Adjustment of overseers' balances.

A.D. 1922. of the poor in respect of any rate made before that date and levied upon any rateable hereditament in those parishes shall be a matter for adjustment under section 62 of the Act of 1888.

Guardians.

42.—(1) The parish of Neath shall for the purposes of the election of guardians be divided into three wards which shall be respectively co-terminous in area with the borough is by this Part of this Act divided into which the purposes of the election of councillors.

(2) Four guardians shall be assigned to each ward.

(3) The four persons who are at the appointed day guardians for the parish of Briton Ferry shall continue to act as members of the board of guardians of the Neath Union and shall be deemed to have been elected for the Briton Ferry Ward.

(4) The five persons who at the said day are holding the office of guardian for the existing wards of the existing parish of Neath and the two persons who at that day are holding the offices of rural district councillor and guardian for the Melyn Ward of the existing parish of Llantwit Lower shall be allocated by the said board of guardians at their meeting held next before that day as follows that is to say four to the Neath North Ward and three to the Neath South Ward and the persons so allocated shall be deemed to have been elected for those wards respectively.

(5) The person who at the said day is holding the office of rural district councillor and guardian for the Tonna Ward of the existing parish of Llantwit Lower shall continue in office as a guardian and be deemed to have been elected for the Tonna Ward of the parish of Clyne.

(6) Any guardian continued in office by this section shall vacate office on the date upon which he would have retired from office if this Act had not been passed.

(7) On the date of the first ordinary selection of guardians of the poor of the Neath Union to be held after the appointed day an additional guardian shall be elected for the Neath North Ward of the parish of Neath and thereafter the number of guardians elected for that ward shall be four and the total number of the elected

guardians of the poor for the Neath Union shall be increased from fifty-two to fifty-three. A.D. 1922.

(8) If at the appointed day any casual vacancy shall exist in the representation on the Neath Board of Guardians of any existing parish mentioned in this section or any ward of such parish an election to fill such casual vacancy shall not be held.

43.—(1) As from the appointed day the two rural district councillors representing the Melyn Ward of the existing parish of Llantwit Lower shall go out of office as rural district councillors and the number of elected members of the Neath Rural District Council shall be reduced by two. Rural district councillors.

(2) The person who at the appointed day is the rural district councillor representing the Tonna Ward of the existing parish of Llantwit Lower shall be deemed to have been elected as rural district councillor for the Tonna Ward of the parish of Clyne by this Act constituted and the person who at the appointed day is the rural district councillor representing the existing parish of Clyne shall be deemed to have been elected as rural district councillor for the East Clyne Ward of that parish. The said two persons shall continue in office until the respective dates on which they would have respectively retired from office if this Act had not been passed.

44. Until new valuation lists are in force the portions of the valuation lists of the existing parishes of Briton Ferry and Port Talbot which respectively relate to hereditaments in the added areas shall form part of the valuation list of the parish of Neath. Valuation lists.

45.—(1) Subject to any future revision the basis or standard of the county rate of the county shall be altered— County rate basis.

- (a) by the deduction from the amounts respectively appearing therein as the net annual value of the agricultural land and of other hereditaments in the existing parishes of Briton Ferry and Port Talbot of such a sum in each case as will represent the net annual value of the agricultural land and other hereditaments in the remainder of Briton Ferry and the added part of Port Talbot;

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(b) by the addition to the amounts respectively appearing therein as the net annual value of the agricultural land and other hereditaments in the existing parish of Neath of the sums deducted under paragraph (a) of this subsection.

(2) For the purpose of this section the net annual value of the agricultural land in the remainder of Briton Ferry and the added part of Port Talbot shall in each case be the amount which bears the same relation to the net annual value of the agricultural land in the existing parish as the total rateable value of the agricultural land in such remainder or added part bears to the total rateable value of the agricultural land in the existing parish.

(3) For the purpose of ascertaining the net annual value of hereditaments not being agricultural land in the remainder of Briton Ferry and the added part of Port Talbot subsection (2) of this section shall apply with the substitution for "agricultural land" of "hereditaments other than agricultural land."

(4) The amounts shown in the basis or standard of the county rate of the county as the net annual value and the assessable value of the property in the existing parishes of Neath and Port Talbot shall be altered so as to correspond with the alterations in the net annual value of agricultural land and of hereditaments not being agricultural land made under this section.

(5) In this section "net annual value" and "assessable value" mean the net annual value and assessable value according to the basis or standard of the county rate of the county and "total rateable value" means the total rateable value according to the valuation list of the parish in force when the basis or standard is being altered in pursuance of this section.

Settlement
and removal
of poor.

46. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Part of this Act the following provisions shall have effect:—

(1) Every person who at the appointed day has acquired or is in the course of acquiring a settlement in any existing parish affected by this Part of this Act by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being

done or of any status condition right or privilege acquired or created or in the course of acquisition or creation in the existing parish of Neath or in either of the added areas shall be deemed to have acquired or to be in the course of acquiring a settlement in the parish of Neath as if the existing parish of Neath and the added areas were and had always been parts of the parish of Neath :

A.D. 1922.

- (2) Every person who at the appointed day has acquired or is in the course of acquiring a status of irremovability from the Neath Union by reason of residence in any of the areas mentioned in subsection (1) of this section shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the parish in which by virtue of subsection (1) of this section he is to be deemed to have acquired or to be in the course of acquiring a settlement.

47.—(1) In the preparation of the autumn register for the year 1922 in pursuance of the Act of 1918 so far as it relates to any area affected by this Part of this Act it shall be competent to the registration officer of the parliamentary county of Glamorgan to frame the register in separate parts for each area which will constitute a registration unit from and after the appointed day instead of in separate parts for each area constituting a registration unit before the appointed day.

Provisions
as to
register of
electors.

(2) If the register of local government electors for any area affected by this Part of this Act is not so framed as to show the persons entitled to vote at an election to be held for a parish or ward or other voting area the town clerk in the case of an election for a parish or ward or other voting area within the borough and the registration officer of the parliamentary county in the case of an election for a parish or ward or other voting area outside the borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of the overseers to render such assistance as may be required by the town clerk or the registration officer of the parliamentary county for the purpose of such alteration or re-arrangement.

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(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Part of this Act and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Amendment
of Article 53
of Order
of 1921.

48. Subdivision (2) of Article 53 of the Order of 1921 is hereby repealed and the following subdivision substituted (that is to say):—

“(2) If the register of local government electors for any area affected by this Order is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for a parish or ward or other voting area the town clerk in the case of an election for a parish or ward or other voting area within the borough and the registration officer of the parliamentary county in the case of an election or parish meeting for a parish or ward or other voting area outside the borough should make such alteration or re-arrangement of the register as may be necessary for the purpose of such election or parish meeting.”

Liquidation
of current
debts and
liabilities.

49.—(1) The Briton Ferry Council shall liquidate as far as practicable before the appointed day all current debts and liabilities incurred by them.

(2) The county council the Corporation the Port Talbot Corporation and the Briton Ferry Council and the guardians of the Neath Poor Law Union shall prior to the appointed day make and levy such rates or issue such precepts or contribution orders as may be necessary to raise funds sufficient to defray all current debts and liabilities and the expenditure to be incurred before the first day of April one thousand nine hundred and twenty-three in respect of the areas affected by this Part of this Act.

(3) The overseers of the poor of any existing parish affected by this Part of this Act shall before the appointed day make and levy such rate or rates as may be necessary to satisfy the requirements of any such precept or contribution order and also to raise funds sufficient to defray all current debts and liabilities incurred or to be incurred by such overseers before the first day of April one thousand nine hundred and twenty-three.

(4) If default is made in complying with the provisions of this section in respect of any area affected by this Part of this Act then— A.D. 1922.

- (a) If such default is in relation to the levy of any rate or the issue of any precept for purposes of the Public Health Acts in the existing borough the overseers of the poor of the parish of Neath after the appointed day shall on receipt of a precept from the Corporation make and levy in the area of the existing parish of Neath a separate rate in the nature of a poor rate of such an amount in the pound as will be sufficient to meet the precept and defray such portion of the current debts liabilities and expenditure aforesaid which are chargeable on the poor rate as if the area of the existing parish of Neath were a separate parish ;
- (b) If such default is in relation to the levy of any rate or the issue of any precept for purposes of the Public Health Acts in an added area the Corporation may after the appointed day make and levy in such added area a general district rate of such an amount in the pound as will be sufficient to defray such portion of the current debts liabilities and expenditure aforesaid as if such area were an urban district and the Corporation were the urban district council of such urban district and the provisions of the Public Health Acts relating to general district rates shall apply to any general district rate authorised by this section ;
- (c) If such default is in relation to the issue of any contribution order or precept or the levy of any rate for purposes other than those of the Public Health Acts in the existing parish of Neath or in an added area the overseers of the poor of the parish of Neath after the appointed day may (and on receipt of a precept or contribution order from the Corporation or the guardians of the Neath Poor Law Union shall) make and levy in the area of the existing parish of Neath or in such added area (as the case may be) a separate rate in the nature of a poor rate of such an amount in the pound as will be sufficient

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to meet the precept or contribution order and defray all current debts and liabilities and expenditure aforesaid which are chargeable on the poor rate as if the existing parish or added area were a separate parish.

(5) Except as provided by Article 38 (Liquidation of current debts and liabilities) of the Order of 1921 and by this section a rate shall not be made after the appointed day and before the first day of April one thousand nine hundred and twenty-three in the borough or in the parish of Neath.

Supply of
water and
electricity
in bulk by
Neath Rural
District
Council.

50. Notwithstanding anything in this Part of this Act as from the appointed day the Neath Rural District Council shall supply in bulk and the Corporation shall take—

- (a) all the water which shall from time to time be required by the Corporation for distribution for domestic trade and public purposes within the added areas;
- (b) all the electrical energy which shall from time to time be required by the Corporation for distribution for public or private purposes within the added areas;

upon such terms and conditions as may be agreed upon between the Corporation and the Neath Rural District Council or in default of agreement as may be determined in the case of the supply of water by the Minister of Health or in the case of the supply of electrical energy by the Electricity Commissioners.

Repeal of certain
provisions of
Order of 1921.

51. The provisions of the Order of 1921 mentioned in the Third Schedule to this Act are hereby repealed.

Ecclesiasti-
cal divisions
and chari-
ties.

52. Nothing in this Part of this Act shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment but any power vested in trustees to acquire land in the borough of Neath or in the existing borough shall extend to lands in the borough.

Saving for
existing
jury lists.

53. For the purposes of the jury lists the parishes affected by this Part of this Act shall be deemed to continue unaltered until the new lists come into operation.

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54. Notwithstanding the alteration of areas effected by this Part of this Act all contribution orders or precepts issued or made before the appointed day shall be as valid as if this Act had not been passed.

Saving for contribution orders and precepts.

55. Nothing in this Part of this Act shall be construed as restricting the powers of the Minister of Health under the Acts relating to the relief of the poor or the powers of the Minister of Health or of the county council under the Act of 1888 or the Act of 1894.

Saving for powers of Minister or county council.

56. Nothing in this Part of this Act shall affect the powers of the county council under section 31 of the Act of 1918 or any order or scheme made by the county council for the division of the parliamentary county of Glamorgan into polling districts and the appointment of polling places for parliamentary elections.

Parliamentary polling districts.

57. Nothing in this Part of this Act shall affect the limits for the execution of the Neath Harbour Acts 1843 to 1901 or the constitution powers or duties of the Neath Harbour Commissioners under those Acts.

Saving for Neath Harbour Commissioners.

58.—(1) Notwithstanding anything contained in the former Acts to the contrary the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the borough rate in respect of such hereditaments on the full rateable value thereof but (subject as in this section provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of eighty per centum only of the amount in the pound payable in respect of hereditaments not within the provisions of this section :

For protection of railway companies and others.

Provided that in respect of so much of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section as is included therein for the purpose of making good any deficiency in connexion with the gas undertaking under the Act of 1874 or for the purpose of defraying the interest upon any moneys borrowed by virtue of the Acts of 1894 1897 or this Act for the water or tramway undertakings of the Corporation or for the purpose of making provision for the discharge of any money so borrowed the basis of calculation of the rate payable by the

A.D. 1922. — Great Western Railway Company shall be twenty-five per centum only in place of the eighty per centum hereinbefore referred to.

Nothing in this section shall in any way affect—

(a) The amount of the contribution for any purposes to be made by the parish of Neath out of the poor rate; or

(b) The calculation of the amount in the pound of the part of the poor rate levied for the purposes of the relief of the poor and other expenses of the guardians and expenses of the overseers of the parish of Neath respectively which is required to be stated in the demand note for the poor rate.

(2) The proviso to section 32 of the Act of 1874 subsection (4) of section 35 of the Act of 1894 and the proviso to subsection (3) of section 54 of the Act of 1897 are hereby repealed.

As to
section 133
of Lands
Clauses
Consolidation Act
1845.

59. For the purposes of section 133 of the Lands Clauses Consolidation Act 1845 the poor's rate within the areas added to the existing borough by the Order of 1921 and by this Act shall be deemed to be one half of the amount in the pound of the total rate levied in the borough.

PART III.

WATER.

Revision of
rates.

60. The Corporation may with the sanction of the Minister of Health at any time increase the water rates leviable by them by such an amount as may be considered necessary in order to meet the estimated expenditure of the water undertaking of the Corporation.

Repeal of
certain
provisions
of Act of
1861.

61. Sections 32 35 to 38 inclusive and 40 of the Act of 1861 are hereby repealed.

PART IV.

GAS.

Gas fittings
let for hire
to continue

62.—(1) Any fittings let for hire under the provisions of section 25 (Power for company to supply gas

fittings) of the Neath Gas Act 1873 shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Corporation and shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

A.D. 1922.
 —
 property of
 Corporation.

(2) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any such fittings are or shall be fixed.

63. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Corporation by section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire from the Corporation all or any of the pipes meters fittings or apparatus belonging to the Corporation.

Power to
 enter
 premises
 and remove
 fittings.

64. The Corporation may on the application of the owner or occupier of any premises within the gas limits abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the provisions of the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with the Acts relating to the gas undertaking :

Power to
 lay pipes
 in private
 streets.

Provided that the Corporation shall not break up any street belonging to or repairable by the Great Western Railway Company except upon such terms and conditions as may be agreed between the Corporation and the Great Western Railway Company or failing agreement as may be settled by an engineer to be appointed (failing agreement) by the President of the Institution of Civil Engineers on the application of the Corporation.

65.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the

Period of
 error in

A.D. 1922.
defective
meter.

Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Corporation.

Power to
vary price
according
to purpose
for which
gas sup-
plied.

66.—(1) Notwithstanding anything contained in the Acts relating to the gas undertaking the price to be charged by the Corporation for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Corporation and the person taking such supply.

(2) Provided that the Corporation shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Amending
obligations
as to supply
of gas.

67. Notwithstanding anything contained in the Acts relating to the Corporation they shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Corporation interfere with the sufficiency of the gas required to be supplied by means of such main for lighting or domestic purposes.

Occupier, to
pay ex-
penses of
re-connect-
ing dis-
continued
supply.

68. In any case in which in consequence of any default on the part of the occupier of any premises the Corporation shall have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Corporation the expenses of re-connecting the supply and the Corporation shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Notice to
discontinue
supply of
gas.

69. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on

behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation. A.D. 1922.

70. At least twenty-four hours' notice shall be given to the Corporation by every gas consumer either personally at the office of the Corporation or in writing before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Corporation. Gas consumers to give notice to Corporation before removing.

71. The Corporation and any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the gas limits may enter into and carry into effect contracts for the supply by one of the contracting parties to the other of gas in bulk upon and subject to such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise any party to any such contract to lay any mains or interfere with any street beyond their limits for the supply of gas. Corporation may contract with local authority &c. for supply in bulk.

72. The Corporation may enter into and carry into effect agreements with any company or person for the supply of gas in a crude or partially purified state by such company or person to the Corporation for such remuneration on such terms and conditions and for such period as the Corporation may think fit. Corporation may contract for purchase of gas.

73. The Corporation may purchase or take on lease and maintain houses and buildings for persons in their employment in connexion with the gas undertaking and offices showrooms and other buildings for the purposes of that undertaking and they may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Corporation for those purposes. Dwelling-houses for employees and other buildings.

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PART V.

ELECTRICITY.

As to maximum power which may be demanded.

74. The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of energy taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882.

The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Method of charging for electrical energy.

75. Notwithstanding anything contained in the Electricity (Supply) Acts 1882 to 1919 or in any other Act or any Order relating to the Corporation or the electricity undertaking the Corporation may in all or any cases where they supply electrical energy charge for and in respect of such supply by any method for the time being selected by the Corporation and approved by the Minister of Transport Any such method may be other than by the actual amount of electrical energy supplied or the electrical quantity contained in such supply and may authorise a periodical charge in respect of the maximum power required by the consumer in addition to a charge for the electrical energy supplied to him.

Power to refuse to supply electrical energy in certain cases.

76. The Corporation may refuse to supply electricity to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

PART VI.

A.D. 1922.

STREETS.

77. The power of the council to make byelaws with respect to new streets under section 157 of the Public Health Act 1875 shall extend to enable them to require intersecting streets in connexion with the laying out of new streets at such intervals as the byelaws may determine. For the purposes of this section intersecting street means a side or cross street forming a junction with another street.

Byelaws as to intersecting streets.

78.—(1) Whenever application shall be made to the Corporation to approve the formation of a new street on any estate or lands it shall be lawful for the Corporation to require that the new street shall be formed of such width as the Corporation shall require :

Width of new streets.

Provided that in the event of the Corporation requiring any new street to be of any greater width than the following (hereinafter in this Act called "the prescribed width") (namely)—

(a) in the case of a new street which in the opinion of the Corporation will form a main thoroughfare or a continuation of a main thoroughfare or means of communication between main thoroughfares in the borough or a continuation of a main approach or means of communication between main approaches to the borough sixty feet; or

(b) in the case of any other new street the width required for such street by any Act or byelaw for the time being in force within the borough;

the Corporation shall purchase from the owner of such estate or lands and such owner shall sell to the Corporation any additional land necessary to make such new street of such greater width as aforesaid and shall also make compensation to such owner for any loss or damage sustained by him by reason of the Corporation requiring the street to be of such greater width as aforesaid.

(2) The purchase money payable by the Corporation in respect of any such additional land as aforesaid shall in default of agreement be a sum equal to the pro rata proportion of the amount which shall at the date on

[Ch. lxxxi.] *Neath Corporation* [12 & 13 GEO. 5.]
Act, 1922.

A.D. 1922. which the Corporation require the new street to be of such greater width be the value of so much of the undeveloped land of the same owner as is or will be developed or improved by the intended works of street formation on the estate of which such additional land forms part..

(3) If by reason of the Corporation requiring any new street to be of any such greater width as aforesaid any land of any owner adjoining such new street will be or has become so reduced in area that it cannot having regard to the provisions of any Act or byelaw in force within the borough be used for building purposes and such owner shall within three months from the date of his receiving notice of such requirement give to the Corporation written notice so desiring the Corporation shall in lieu of paying such owner compensation as aforesaid purchase from such owner and such owner shall sell to the Corporation such reduced area of land and the purchase money payable in respect of any such reduced area as aforesaid shall be the amount which shall be the value thereof at the date on which the Corporation require the new street to be of such greater width.

(4) The amount of any compensation and of any purchase money payable under this section and any difference thereunder as to whether any land has become so reduced in area as aforesaid shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 but in estimating the amount of any such compensation the benefit accruing to the property of which such additional land forms part by reason of the street being of such greater width shall be fairly estimated and set off against such compensation.

(5) Nothing contained in this section shall require an owner to incur any greater expense in the execution of any street works than he would have been required to incur if the new street had been of no greater width than the width required for such street under any byelaw for the time being in force within the borough and any additional expense incurred in the execution of street works by reason of the new street being of such greater width shall be borne by the Corporation.

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79.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “the building line”) and the Corporation shall be deemed to have approved any building line so shown unless within six weeks after the date of submission thereof as aforesaid they shall have signified to the person submitting the same their disapproval thereof.

Building
line in new
streets.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition for their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of the street than one-half of the width of the street and ten feet in addition the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

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(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

(7) (a) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

No building
allowed
until street
defined.

80.—(1) No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and the level thereof.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Prevention
and removal
of projec-
tions over
streets.

81.—(1) Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

(2) This section shall not apply to any building (not used as a dwelling-house) belonging to or which may hereafter belong to any railway company pursuant to their statutory powers.

Erection of
bridges.

82. All bridges (other than bridges which the inhabitants are by law liable to maintain and repair and other than bridges authorised to be made by any railway company) hereafter erected and which form a continuation of any street laid out or to be laid out in accordance with the byelaws relating to new streets and the

approaches to such bridges shall be of such width and gradients as the Corporation approve and shall be built in accordance with specifications plans and sections to be submitted to and approved by the Corporation and it shall not be lawful to erect any such bridge except in accordance with the provisions of this section and any person acting in contravention of such provisions shall be liable to a penalty not exceeding fifty pounds and the Corporation may remove alter or pull down any work begun or done in contravention of this section and recover the expenses from such person summarily.

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83. Where premises abutting upon any street are so situate that surface water from such premises flows on to or over the footpath of such street the owner of such premises shall within fourteen days after service of a notice by the Corporation for that purpose execute such works as may be reasonably practicable to prevent the water from such premises from flowing over the footpath and in default of compliance with such notice within the period aforesaid such owner shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For pre-
venting
water flow-
ing on
footpaths.

84. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent soil sand clay cinders or other like substances from such lands from falling upon or being washed or carried into any public street or sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

For pre-
venting soil
&c. from
being
washed into
streets.

For the purposes of this section "public street" means so much of a street repairable by the inhabitants at large as is sewered and "private street" means a street not so repairable :

Provided that such owner or occupier shall not be responsible for any soil sand clay cinders or other substances from land other than his own although such soil sand clay cinders or other substances may have passed over the land of such owner or occupier Provided

A.D. 1922: further that this section shall not apply to any land of a bonâ fide agricultural character or to any woodland.

Forecourts
to be fenced
off from
streets.

85. Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Continuation of
existing
street to be
deemed
new street.

86. Every continuation of an existing street shall for the purposes of the Public Health Acts and of any local Acts for the time being in force within the borough and of this Act and of any byelaws made thereunder respectively and for the time being in force within the borough be deemed to be a new street.

PART VII.

BUILDINGS.

Erection of
buildings to
greater
height than
adjoining
buildings.

87.—(1) In case any building is erected or raised after the first day of October one thousand nine hundred and twenty-one to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised or the top of such last-mentioned building whichever may be the higher.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Elevation
of buildings
erected on
front lands
to be sub-
ject to

88.—(1) All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made after the passing of this Act by the Corporation becomes front land shall be erected according to such

elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the door or entrance or the building wall or fence in a line and the elevation of the building wall or fence fronting to or towards the street in accordance with a drawing approved by the Corporation and in case the Corporation for a space of six weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof.

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approval
of Cor-
poration.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

(4) Nothing in this section shall apply to any building (not used as a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company and used for the purposes (other than a dwelling-house) of the undertaking of such company with the authority of Parliament.

89. The power given by subsection (4) of section 23 of the Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission in respect of the alteration of such plans and sections as can be required in relation to the erection of a new building.

Byelaws as
to altera-
tions to old
buildings.

90.—(1) If the medical officer is of opinion that any building proposed to be erected in the borough would if erected—

Prevention
of obstruc-
tive build-
ings.

(a) stop ventilation or otherwise make or conduce to make other buildings in its proximity to be in

A.D. 1922.

a condition unfit for human habitation or dangerous or injurious to health; or

- (b) prevent proper measures from being carried into effect for remedying any nuisance injurious to health or other evils complained of in respect of such other buildings;

he may make a representation to the Corporation to that effect stating that in his opinion it is inexpedient that the proposed buildings should be erected.

(2) The Corporation on receiving any such representation shall cause a report to be made to them respecting the circumstances of the case and the cost of acquiring the land upon which such building is proposed to be erected and on receiving such report shall take into consideration the representation and report and if they decide to proceed shall cause a copy of both the representation and report to be given to the owner of the said land with notice of the time and place appointed by the Corporation for the consideration thereof and such owner shall be at liberty to attend and state his objections and after hearing such objections the Corporation shall make an order either allowing the objection or directing that such building shall not be erected and such order shall be subject to appeal in like manner as an order of demolition of the local authority under the provisions of Part II. of the Housing of the Working Classes Act 1890.

(3) Where an order of the Corporation prohibiting the erection of a building is made under this section and either no appeal is made against the order or an appeal is made and either fails or is abandoned the Corporation may (and if required so to do by notice in writing from the said owner served within seven days from the last date upon which such owner might have so appealed or from the hearing of such appeal (as the case may be) shall) purchase the land on which the building was proposed to be erected in like manner as if they had been authorised by a special Act to purchase the same and for the purpose of such purchase the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement shall be deemed to be incorporated in this section and such lands may be purchased at any time within one year after the date of

the order or if it was appealed against after the date of the confirmation. A.D. 1922.

(4) The owner of the land may within one month after notice to purchase the same is served upon him declare that he desires to retain the said land and in such case the owner shall retain the said land.

(5) The amount of any compensation to be paid on the purchase of any land under this section shall in case of difference be settled by arbitration in manner provided by section 41 of the Housing of the Working Classes Act 1890.

91.—(1) Before any person shall erect on any land within the borough a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation. As to erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

92. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words “and floor area” had been inserted therein after the word “height” in subsection (1) of that section. Area of habitable rooms.

93. The Corporation may make byelaws with respect to the following matters (viz.) :—
The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united. Byelaws as to materials and construction of buildings.

94.—(1) The owner or owners of premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage Courts to be flagged and drained.

A.D. 1922. shall if so required by the Corporation flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same and provide gullies and grids in suitable positions and at proper levels and keep such flagging asphaltting concreting or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for two months after notice in writing from the Corporation fail in any respect to comply with any requirement of the Corporation under the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Corporation may themselves if they think fit do the work and recover the expenses incurred by them in that behalf from such owner or owners.

Sanitary
conveni-
ences for
workmen
engaged on
buildings.

95.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building or of any works in the borough shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such construction reconstruction or alteration sanitary conveniences in or in connection with such building or works for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Lopping of
trees over-
hanging
highways.

96.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within fourteen days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage and may recover the costs of so doing from the owner or occupier upon whom the notice was served.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a

court of summary jurisdiction within fourteen clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section. A.D. 1922.

97. Nothing in the sections of this Act hereinafter mentioned shall apply to any work constructed or to be constructed by the Great Western Railway Company as a part of or for the purposes of their railways or canals under any statutory powers or to any lands or other premises held or acquired by the Great Western Railway Company and used for the purposes (other than for a dwelling-house) of their railways or canals with the authority of Parliament. For protection of Great Western Railway Company.

The sections of this Act hereinbefore referred to have the following marginal notes :—

“ Byelaws as to alterations to old buildings ” ;

“ As to erection of retaining walls ” ;

“ Byelaws as to materials and construction of buildings.”

PART VIII.

SANITARY PROVISIONS.

98.—(1) When a sewer and water supply sufficient for the purpose are reasonably available the Corporation may require any existing closet accommodation (other than a watercloset) provided at or in connection with any building to be altered so as to be converted into a water-closet which shall comply with the byelaws for the time being in force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connection with such building. Conversion of existing accommodation into water-closets.

(2) If the owner of any such building fail in any respect to comply with a notice from the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the

A.D. 1922. — work specified in such notice and may recover from the owner the expenses incurred by the Corporation in so doing :

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer to be insufficient for the necessities of the inhabitants of the building or to be in such a state as to create a nuisance or to be dangerous or injurious to health then the Corporation shall bear and pay such part of the expenses incurred by them (not being less than one-half thereof) as they may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owners.

(3) The Corporation may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this section in any case in which they may not be required to bear any part of such expense.

(4) The notice under this section shall state the effect of the provisions of this section.

Byelaws
as to water-
closets.

99. The Corporation may make byelaws for securing that waterclosets are so constructed and supplied with water that they can be adequately flushed by mechanical means and for securing their protection against frost and for the prevention of the improper use of such closets and of the blocking of the pipes therefrom.

Houses in-
fested with
vermin to
be cleansed.

100.—(1) If the medical officer or sanitary inspector has reasonable cause to believe that any house is infested with vermin he may enter on such house and may inspect and examine the same and any article therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer or the sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in

the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require. A.D. 1922.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a fine not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall be recoverable summarily as a civil debt from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

101.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious

Cleansing
of ver-
minous per-
sons.

A.D. 1922. — disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who or (where the person is a child) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where two justices on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the condition of any order satisfied without charge to the person removed or to the parent or guardian of that person.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such order the Corporation may and in case of an order of the justices shall make compensation to him for any loss he may suffer thereby.

(4) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

(5) This section shall not apply to any child as defined in the section of this Act of which the marginal note is "Cleansing of children and their clothing."

Cleansing
of children
and their
clothing.

102.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may within the borough examine the person and clothing of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion

that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice. A.D. 1922.

(2) If the person to whom any such notice as aforesaid is given fail to comply therewith within the prescribed time the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under the provisions of this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall on summary conviction be liable to a fine not exceeding ten shillings.

(4) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence.

In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of the child whose person or clothing requires to be cleansed.

(6) For the purposes of this section the expression "child" means a person under the age of fourteen years.

A.D. 1922.

Defining
establish-
ment of a
new busi-
ness for
purposes of
section 112
of Public
Health Act
1875.

103.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if without the consent in writing of the Corporation—

- (a) it is removed from one set of premises to any other premises ; or
- (b) it is renewed on the same set of premises after having been discontinued for a period of six months or upwards ; or
- (c) any premises on which it is for the time being carried on are enlarged ;

but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on such offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

PART IX.

HUMAN FOOD.

No place
used for
storage &c.
of human
food to be
used for

104.—(1) No room shop or other part of a building in which any food is sold or prepared or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

A.D. 1922.
—
sleeping-
place.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of the provisions of this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

105.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the borough—

For regu-
lating
manufac-
ture and
sale of ice-
cream &c.

(a) causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(b) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer ;

shall be liable for every such offence to a penalty not exceeding five pounds.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream

A.D. 1922. or other similar commodity) suffering from any infectious disease the medical officer or sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow or stand in or on which the same are offered for sale as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Byelaws re-
quiring covering
over of meat
&c. during
conveyance
through streets.

106. The Corporation may from time to time make byelaws requiring the covering over of meat or such other articles intended for the food of man as may be specified in the byelaws while being conveyed through or along any street.

Rag and
bone
dealers not
to sell food.

107.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of a rag and bone merchant or any person acting on behalf of any such person as aforesaid to sell or distribute within the borough any articles of food from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from

any shop or premises used for or in connection with the business of a rag and bone merchant. A.D. 1922.

(2) Every person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

108.—(1) Subject to the provisions of this Act the sanitary inspector or any officer duly authorised by the Corporation in that behalf shall at all reasonable times have power to enter the premises of any vendor of or merchant or dealer in any commodity intended for the food of man or any premises where any such commodity is for the purposes of sale deposited or stored or in preparation for sale for the purpose of inspecting such premises and materials or commodities or articles of food therein.

Power to enter and inspect premises where food is deposited for sale.

(2) On any such inspection the said sanitary inspector or officer of the Corporation shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor if required.

PART X.

INFECTIOUS DISEASES.

109. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in any occupation connected with food intended for the use of man or knowingly carries on any trade or business connected with food intended for the use of man in such a manner as to be likely to spread the infectious disease he shall be liable on conviction to a penalty not exceeding forty shillings.

Prohibition of infected person carrying on business.

110. If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly Any person who offends against this enactment

Persons to furnish names of laundryman to whom clothes &c. from infected houses sent.

A.D. 1922. shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty on withholding information from medical officer.

111.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from a dangerous infectious disease shall on the application of the medical officer or the deputy or assistant medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer or the deputy or assistant medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression “occupier” shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Removal of body of person who has died of infectious disease.

112. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the borough of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such case it shall not be lawful to transport any such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

For preventing contact with body of person who has died of infectious disease.

113. Any person who being in charge of the body of any person who has died from any dangerous infectious disorder or infectious disease shall permit or allow any other person unnecessarily to come into contact with such

body shall be liable to a penalty not exceeding five pounds. A.D. 1922.

114.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in a highly infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken and that serious risk of infection is thereby caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a registered medical practitioner to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough and for the retention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

Removal of
person
suffering
from
pulmonary
tuberculosis
to hospital.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion during the period of retention make payments for or towards the effective support and maintenance of the relatives of or those actually dependent upon any person so suffering occasioned by the removal of any such person to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary

A.D. 1922. for the support and maintenance of such relatives or dependants.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force within the borough at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Minister of Health which order the Minister of Health is hereby empowered to make.

Power
medically
to examine
inmates of
common
lodging-
houses
where in-
fectious
disease is
supposed to
exist.

115. Whenever the medical officer shall report in writing to the Corporation or to a committee of the Corporation that there is a prevalence of dangerous infectious disease in the borough or any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid

having regard to the circumstances of the case shall in A.D. 1922.
the resolution determine (that is to say) :—

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation or such committee as aforesaid may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a common lodging-house in the borough and to the Minister of Health :
- (3) Unless approved by the Minister of Health any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the said Minister :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

116.—(1) If the Corporation deem it necessary on account of the existence or recent existence therein of infectious disease to close a common lodging-house they may make application to a justice for an order to close the same and the justice if satisfied of the necessity of such closing may make an order for the closing of such house until the same shall have been disinfected to the satisfaction of and certified to be free from infection by the medical officer and any keeper of a common lodging-house who shall receive any lodger or suffer or permit any lodger to remain in such house after an order has been

Power to
close in-
fected com-
mon lodg-
ing-houses.

A.D. 1922. made to close the same and during the continuance of such order shall be liable to a penalty of five pounds for every day during which the offence continues.

(2) The Corporation shall make compensation to the keeper of any such lodging-house for any loss he may sustain by reason of any such closing.

To prevent spread of infectious disease amongst children in Sunday schools &c.

117.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer or school medical officer a certificate (which if granted shall be free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Power to close Sunday schools in certain events.

118.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the borough require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

PART XI.

A.D. 1922.

SEWERS AND DRAINS &c.

119. Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the court may in addition to imposing a penalty under that section order that the drain shall be laid relaid or amended or remade as the case may require in accordance with the provisions of that section and if such person shall not comply with the order within one month after the date thereof the Corporation may cause the drain in respect of which such conviction has been obtained to be laid relaid or amended or remade as the case may require and may recover from such person in a summary manner as a civil debt the expenses incurred by them in so doing.

Power to reconstruct drain if laid in contravention of Public Health Act 1875.

120.—(1) The soil pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Corporation shall direct.

Soil pipes to be ventilated.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Corporation under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

121. If the owner or occupier of any premises within the borough desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Corporation with which he is entitled to have such sewer or drain made to communicate such communication shall be made by the Corporation upon the cost or estimated cost of making the communication being paid to the Corporation or the payment thereof to them being secured to their satisfaction and the Corporation may execute all works necessary for that purpose.

Corporation to make communications between private drains and their sewers on payment &c.

122. Every person who wilfully or negligently turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petroleum or other substances to which the Petroleum Acts apply

Prohibiting entry of petroleum &c. into sewers.

A.D. 1922. from any workshop motor garage or other like premises
— shall be liable to a penalty not exceeding ten pounds and
to a daily penalty not exceeding five pounds.

As to repair
of private
drains.

123. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding twenty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine. Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

Combined
drains.

124.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners subject to a right of appeal under subsection (4) of this section.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person deeming himself aggrieved by the amount of any costs and expenses proposed to be recovered by the Corporation under this section or the amount to

be borne and paid by him may appeal to a petty sessional court provided that such appeal be made within two months from the date of the service of notice by the Corporation intimating the amount payable or their apportionment thereof. On any such appeal the petty sessional court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

A.D. 1922.
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125.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer or into a cesspool or other receptacle for drainage the Corporation shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

Provision
in lieu of
section 19
of Public
Health Acts
Amendment
Act 1890.

(2) Section 19 of the Public Health Acts Amendment Act 1890 shall cease to be in force within the borough.

(3) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

126.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to or vested in them shall thenceforth be appropriated and used for sewage (in this section called a "sewage sewer") and they may declare that any other sewer for the time being belonging to or vested in them shall thenceforth be appropriated and used for surface water (in this section called a "surface water sewer").

Separate
sewers for
surface
water and
sewage may
be required.

(2) Where under the provisions of any Act for the time being in force in the borough the Corporation have power to require any street to be sewered they may require

A.D. 1922. — the provision of separate sewage sewers and surface water sewers and the provisions of that Act shall apply to such sewers accordingly. Provided that the powers of this subsection shall not be exercised unless and until the Corporation shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface water from such separate surface water sewers.

(3) (a) Where in any street separate sewers for sewage and surface water shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient effectually to drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and the surface-water drainage thereof and the Corporation may if they think fit make all such alterations.

Notice of
intention to
repair
drains.

127.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Corporation authorised in writing by him for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds. A.D. 1922.

(4) This section shall not apply to any drain constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers and used for the purposes of the undertaking of such company with the authority of Parliament but not being a drain connected with any dwelling-house.

128. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street or the lands draining thereto the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation. Power to require specially enlarged sewer in new street.

129. Any river stream or watercourse or any part or parts thereof respectively within the borough so choked or silted up (otherwise than by the action of the tide) as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto or to hinder the usual effectual drainage of water through the same shall be deemed to be a nuisance within the meaning of section 91 of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health. Watercourse choked up to be a nuisance under Public Health Act 1875.

130.—(1) The owner of any culvert made before or after the passing of this Act over any watercourse shall from time to time repair maintain and cleanse the same and if any such owner fails to comply with the requirements of a notice given to him by the Corporation to repair maintain or cleanse his culvert within a time specified in the notice the Corporation may execute any necessary works of repair or maintenance of or may cleanse such culvert and the expenses thereby incurred as certified by the surveyor shall be repaid to them by the owner. Owners to repair and clean culverts.

A.D. 1922.

(2) This section shall not apply to any culvert constructed and maintained or to be constructed and maintained under any statutory provision.

PART XII.

MARKETS AND SLAUGHTER-HOUSES.

Increase of
tolls &c.

131. The tolls rents and stallage which the Corporation are authorised to demand and take under and by virtue of section 31 (To provide new cattle market) section 36 (Weighing houses to be erected and weights and measures provided) section 41 (Rents and stallage) and section 43 (Power to let stalls &c.) of the Act of 1835 shall be increased by the addition to the amounts respectively set forth in the Second Schedule to the Act of 1835 of such further amount as the Corporation may fix from time to time by resolution approved by the Minister of Health.

Power to
acquire
lands and
provide new
market
slaughter-
house &c.

132. The Corporation may from time to time by agreement purchase take on lease or otherwise acquire and hold any lands not exceeding in the whole ten acres and may on any of such lands provide erect and maintain a new cattle-market and market-place and a new slaughter-house together with all necessary and proper buildings and conveniences connected therewith respectively.

The provisions of the Act of 1835 as varied or amended by the former Acts or any of them or by this Act shall mutatis mutandis extend and apply to such new cattle-market and market-place and new slaughter-house and the sites thereof respectively as if the said lands had been mentioned in the First Schedule to the Act of 1835 and as if such new cattle-market and market-place were the market and such new slaughter-house were the slaughter-house authorised to be provided by the Act of 1835.

Power to
take down
buildings of
existing
cattle-
market and
slaughter-
house &c.

133. When the said new cattle-market and market-place shall have been erected and be ready to be opened for public use the Corporation may if they think fit retain and use for other purposes or demolish and take down the buildings on the site of the Corporation's existing cattle-market in Charlesville Place in the borough and when the said new slaughter-house shall have been

erected and be ready to be opened for public use the Corporation may if they think fit demolish and take down the buildings on the site of the existing slaughter-house of the Corporation in Eastland Road in the borough and the Corporation may hold and use the whole or any part of the respective sites thereof for the improvement of streets or for any other purposes whatsoever or may dispose of such respective sites or any part thereof. A.D. 1922.

134. So much of section 37 (Corporation to regulate the market and make byelaws) of the Act of 1835 as enacts that rules orders regulations and byelaws made by the Corporation under the said section shall be subject to appeal at the general quarter sessions of the peace for the county of Glamorgan and so much of section 65 (Allowing an appeal) of the Act of 1835 as provides for the hearing and determination of the cause and matter of any such appeal is hereby repealed and any rule order regulation or byelaw made by the Corporation from and after the passing of this Act under the said Section 37 of the Act of 1835 shall be subject to confirmation as if made under section 167 of the Public Health Act 1875.. Confirmation of market bye-laws &c.

135. Section 33 (Tolls of cattle market when to be paid and how to be recovered) of the Act of 1835 shall be read and construed as if the words "or any of the " goods or chattels of the owner or owners or such other " person or persons so neglecting or refusing to pay the " same as aforesaid " and " or other goods or chattels " had been omitted therefrom and section 41 (Rents and stallage) of the said Act shall be read and construed as if the words " or any of the goods and chattels of the owner thereof " had been omitted therefrom. Amend-ment of sections 33 and 41 of Act of 1835.

136. Sections 54 and 55 and sections 57 to 67 inclusive of the Act of 1835 are hereby repealed. Repeal of certain provisions of Act of 1835.

PART XIII.

POLICE AND HACKNEY CARRIAGES.

137. The provisions of the Town Police Clauses Act 1847 and this Part of this Act and the byelaws of the Corporation for the time being in force with respect to hackney carriages shall be as fully applicable in all respects to hackney carriages standing or plying for As to hackney carriages.

A.D. 1922. hire at any railway station or railway premises within the borough as if such railway station or railway premises were a stand for hackney carriages or a street :

Provided always that the provisions of this section shall not apply to any vehicle belonging to and used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicle. Provided also that nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any hackney carriage in any railway station or railway premises or in any yard belonging to a railway company except with the consent of the railway company owning such station or yard.

Inspection
and certifi-
cation of
taximeters.

138.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the borough to be tested and inspected and they may also require any such taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

PART XIV.

FINANCE.

Expenses
of execu-
tion of Act.

139. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except

such expenses as are to be paid out of borrowed money) A.D. 1922
shall be paid as follows (that is to say):—

- (1) Expenses incurred for sanitary purposes out of the borough fund and borough rate :
- (2) Expenses incurred for purposes of the water-works undertaking out of the water revenue :
- (3) Expenses incurred for purposes of the gas undertaking out of the gas revenue :
- (4) Expenses incurred for purposes of the electricity undertaking out of the revenue of that undertaking :
- (5) Expenses incurred for purposes of the markets and slaughter-houses undertaking out of the revenue of that undertaking :
- (6) Expenses incurred for all other purposes (not otherwise provided for in this Act) out of the borough fund and borough rate :

Provided that as respects such purposes as are referred to in the foregoing paragraphs (2) (3) (4) and (5) respectively if in any year the revenue referred to in relation to those purposes be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the borough fund and borough rate.

140. The Corporation may from time to time borrow at interest (a) for paying the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act the sum requisite for that purpose and (b) with the consent of the Minister of Health such further money as may be necessary for any of the purposes of this Act other than the purposes of Part V. (Electricity). Power to borrow.

Any money borrowed under this section shall be repaid as to money borrowed for the purpose (a) hereinbefore mentioned within five years from the passing of this Act and as to money borrowed with the consent of the Minister of Health within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of the enactments incorporated herewith.

In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge as

A.D. 1922. — regards money borrowed for the said purpose (a) the borough fund and borough rate and as regards money borrowed with the consent of the Minister of Health such revenue fund or rate as may be prescribed by the Minister.

Section 234
of Public
Health Act
1875 not to
apply.

141. The powers of borrowing money given by this Act shall not be restricted by any regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Incorporation of
sections of
Act of 1897.

142. The following provisions of the Act of 1897 (that is to say) :—

Section 61 (Corporation not to regard trusts);

Section 64 (Annual return to Local Government Board);

Section 66 (Protection of lender from inquiry); shall extend and apply mutatis mutandis to and in relation to moneys borrowed and re-borrowed under the powers of this Act.

Mode of
raising
money.

143. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or (with the consent of the Minister of Health under section 52 of the Public Health Acts Amendment Act 1890) by the creation and issue of stock or partly in one way and partly in another or others.

Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

144. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say) :—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

Mode of
payment off
of money
borrowed.

145. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods

and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or (when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund) within six months from the date of borrowing.

A.D. 1922.

146.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

Sinking
fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such higher rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed Provided that in the case of an accumulating sinking fund the Corporation shall pay

A.D. 1922. — into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appear to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund)

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will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

147.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than ten thousand pounds in the whole.

Appoint-
ment of
receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

148. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

149.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to
use one
form of
mortgage
for all
purposes.

A.D. 1922.
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(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation including the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

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Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his rights and interests therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the said Fourth Schedule or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a fine not exceeding twenty pounds.

150.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much

Power to
use sinking
fund in-
stead of
borrowing.

A.D. 1922. of any moneys for the time being forming part of a
— sinking fund as shall be available for the repayment of—

- (a) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or
- (b) moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

- (a) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;
- (b) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;
- (c) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875. A.D. 1922.

(4) The Corporation shall furnish all such information (if any) to the Minister of Health with regard to the exercise of the powers contained in this section as the Minister shall require.

151.—(1) The Corporation shall have power—

Power to
re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

A.D. 1922.

Power to
invest all
sinking
funds in
statutory
securities.

152. Where under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them or to provide a reserve or renewal fund they may (in addition to any other powers from time to time vested in them) invest such sinking reserve or renewal fund and the interest on the investments thereof in statutory securities.

As to
accumu-
lating sink-
ing funds.

153. Notwithstanding anything contained in any Act or Order relating to the Corporation the accumulations of the annual sums to be paid into any accumulating sinking fund of the Corporation may be reckoned at a rate not exceeding three and a half per centum per annum or such higher rate as the Minister of Health may from time to time approve.

Provisions
as to trans-
fers of
mortgages.

154.—(1) Every deed of transfer of any mortgage of the Corporation shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever.

(2) The deed of transfer when duly executed and stamped shall be delivered to and kept by the Corporation and the Corporation shall enter a memorial thereof in the appropriate register of the Corporation and shall endorse a notice of that entry on the deed of transfer and also on the transferred mortgage.

(3) Until the deed of transfer has been so delivered to the Corporation the Corporation shall not be affected thereby and the transferee of the mortgage shall not be entitled to receive any interest thereon or to repayment thereof.

(4) The Corporation before allowing any transfer of any mortgage may if the circumstances of the case appear to them to make it expedient require evidence of the title of any person claiming a right to make the transfer.

(5) That evidence shall be a statutory declaration of one or more competent persons or of such other nature as the Corporation may require.

(6) It shall not be obligatory on the Corporation or the town clerk to receive or register any transfer assignment certificate of death burial bankruptcy or marriage

probate letters of administration or other document evidencing a transmission of any mortgage except upon the production to and temporary deposit with the town clerk of the mortgage for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new mortgage and in the case of the issue of a new mortgage for the purpose of cancellation of the mortgage so deposited. A.D. 1922.

155.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixing equated periods.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Minister of Health who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister of Health may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister of Health, separate consolidations may be made of all or any of the loans included under such general headings.

(5) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

A.D. 1922.

—
Treasurer
instead of
town clerk
to make
annual re-
turns to
Ministry of
Health.

156. From and after the passing of this Act the treasurer shall make to the Ministry of Health any return in relation to any loans fund or sinking fund or instalments which by the former Acts or any of them or by any public Act the town clerk is required to make and any provision relating to the making of such return in any such Act shall be read and have effect as if the treasurer were mentioned therein in lieu of the town clerk.

PART XV.

MISCELLANEOUS.

Attach-
ment of
brackets
and wires
to buildings.

157.—(1) The Corporation may with the consent of the owner of any building wall or bridge attach to that structure such brackets wires lamps and apparatus as may be required for lighting any street :

Provided that—

- (a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and to determine by which of the parties the costs of the appeal are to be paid ;
- (b) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the structure but any attachments fixed under the provisions of this section shall not be required to be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the

court of summary jurisdiction shall have the same powers as under the first proviso to this section; A.D. 1922.

(c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the structure;

(d) The Corporation shall not affix any brackets wires lamps or apparatus to any structure belonging to the Great Western Railway Company without the previous consent in writing of that company or if such consent is unreasonably withheld the approval of an engineer to be appointed on the application of the Corporation by the President of the Institution of Civil Engineers.

(2) For the purposes of this section any occupier of a structure whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

158. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VI. (Streets) Part VII. (Buildings) Part VIII. (Sanitary provisions) Part X. (Infectious diseases) and Part XI. (Sewers and drains &c.) of this Act as if those purposes had been mentioned in the said section 102. Power to enter premises.

159. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of In executing works for owner Corporation liable for negligence only.

A.D. 1922. negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Damages
and charges
to be
settled by
justices. **160.** Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted.

As to
appeal. **161.** Any person deeming himself aggrieved by any condition order judgment determination prohibition apportionment or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal.

Protection
of Corpora-
tion and
officers from
personal
liability. **162.** Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any enactment for the time being in force within the borough.

Evidence of
appoint-
ments
authority
&c. **163.** Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under any enactment for the time being in force within the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or of any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the town clerk shall be *primâ facie* evidence of such appointment

authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1922.

164. Where under any enactment for the time being in force within the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of any act or thing without the required consent. As to breach of conditions of consent of Corporation.

165. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VI. (Streets) Part VII. (Buildings) Part VIII. (Sanitary provisions) Part X. (Infectious diseases) or Part XI. (Sewers and drains &c.) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. Penalty on occupier refusing execution of Act.

166.—(1) Where any notice or demand under any enactment byelaw or regulation for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authentica- tion and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under any such enactment byelaw or regulation may be served in the

A.D. 1922
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same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served :

Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Recovery of
penalties &c.

167. Save as otherwise expressly provided all offences against this Act and the former Acts and all fines forfeitures penalties costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a fine shall not be recovered as penalties but may be recovered summarily as civil debts.

Confirma-
tion of
byelaws.

168. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

Recovery of
demands in
county
court.

169. Proceedings for the recovery of any demand made under the authority of this Act or the former Acts whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court otherwise having jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Informa-
tions by
whom to be
laid.

170. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or the former Acts or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Saving for
indict-
ments &c.

171. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other

consequence to which he would have been liable if such matter had not been made punishable by this Act
A.D. 1922.
Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

172. A judge of any court or a justice shall not be disqualified from acting in the execution of any enactment for the time being in force within the borough by reason of his being liable to any rate. Judges not disqualified.

173. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

174. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and shall be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one fine (other than a daily fine for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

175. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

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The SCHEDULES referred to in the
foregoing Act.

Preamble.
Section 4.

THE FIRST SCHEDULE.

ACTS AND ORDERS RELATING TO THE BOROUGH.

PART I.—LOCAL ACTS.

Session and Chapter.	Description or Short Title.
5 & 6 Wm. IV. c. liii. -	An Act for removing the markets held in the town and borough of Neath in the county of Glamorgan and for providing a new market place in the said town in lieu thereof.
24 & 25 Vict. c. xlv. -	Neath Water Supply Act 1861.
28 & 29 Vict. c. cxli. -	Neath Water (Extension) Act 1865.
29 & 30 Vict. c. ccxviii.	The Neath New Gas Act 1866.
36 & 37 Vict. c. xxxiii.	The Neath Gas Act 1873.
37 & 38 Vict. c. c. -	Neath Corporation Gas Act 1874.
48 & 49 Vict. c. clxxxvi.	The Neath Waterworks Act 1885.
57 & 58 Vict. c. lxxxiii.-	The Neath Corporation Water Act 1894.
60 & 61 Vict. c. lv. -	The Neath Corporation Tramways Act 1897.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
36 & 37 Vict. c. cxvii.	The Tramways Orders Confirmation Act 1873.	The Neath and District Tramways Order 1873.
39 & 40 Vict. c. xcii.	The Gas and Water Orders Confirmation (Chapel-en-le-Frith &c.) Act 1876.	The Neath Water Order 1876.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
56 & 57 Vict. c. cxv.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893.	Provisional Order relating to the borough of Neath.
1 Edw. 7. c. xxxvii.	Electric Lighting Orders Confirmation (No. 2) Act 1901.	The Neath (Borough) Electric Lighting Order 1901.
1 Edw. 7. c. xli.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901.	The Neath Order 1901.
7 Edw. 7. c. cli.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1907.	The Neath Order 1907.
8 Edw. 7. c. cxlvi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908.	The Neath Order 1908.
3 & 4 Geo. 5. c. xxiii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1913.	The Neath Order 1913.
5 & 6 Geo. 5. c. iii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1915.	The Neath Corporation Water Order 1915.
10 & 11 Geo. 5. c. cxiii.	Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920.	The Neath Order 1920.
11 & 12 Geo. 5. c. civ.	Ministry of Health Provisional Orders Confirmation (Aberavon and Neath Extension) Act 1921.	The Neath (Extension) Order 1921.

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THE SECOND SCHEDULE.

Preamble.
Section 4.
Section 6.DESCRIPTION OF THE BOROUGH OF NEATH AS EXTENDED
BY THE ORDER OF 1921 AND BY THIS ACT.

PART I.

The existing borough of Neath.

PART II.

(Areas added by the Order of 1921.)

The parts of the borough of Aberavon the urban district of Briton Ferry and the rural district of Neath referred to in Article 4 (Extension of borough) of the Order of 1921.

PART III.

(Areas added by this Act.)

(a) So much of the urban district of Briton Ferry as is contained within a line or imaginary line drawn from a point being the junction of the north-eastern face of the east pier of the dock entrance gate to the Briton Ferry Dock with the easterly bank of the said dock at the high-water mark of ordinary tides thence proceeding northwards and continuing along the said easterly bank at the high-water mark of ordinary tides for a distance of nine hundred and fifteen feet or thereabouts thence in a straight line eastward to the western corner of the north wall of the subway under the Rhondda and Swansea Bay Railway (Briton Ferry Docks Branch) and the Great Western Railway thence along the face of the north wall of the said subway and continuing along the fence between the said subway and the subway under the Rhondda and Swansea Bay Railway (Main Line) thence along the face of the north wall of the last-mentioned subway and continuing eastwards along the fence between the said Rhondda and Swansea Bay Railway and the roadway leading eastwards from the said last-mentioned subway and on the north side of the said roadway to the point at which the said fence meets the eastern fence of the said Rhondda and Swansea Bay Railway thence to the south-western corner of the outbuildings (now in ruins) situate on the north side of the roadway leading from the said subways to the main road from Neath to Port Talbot thence eastwards along the south face of the south wall of the said outbuildings for a distance of ninety feet or thereabouts from the said south-western corner of the

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said old outbuildings thence continuing in a straight line across the space between the eastern end of the said old outbuildings and the said roadway across the south-eastern corner of the grounds of Briton Ferry House across the said main road from Neath to Port Talbot and across the enclosure numbered 117A.1 on the $\frac{1}{2500}$ Ordnance map 1918 edition (Glamorgan sheet XXIV. 8) to a point on the north-east face of the wall on the south-west side of the old main road from Neath to Port Talbot twenty feet or thereabouts measured in a northerly direction along the face of the said wall from the point where the boundary between the urban district of Briton Ferry and the borough of Port Talbot crosses the said wall thence along the said wall in a south-easterly direction to the said point at which the said boundary between the urban district of Briton Ferry and the borough of Port Talbot crosses the said wall thence proceeding in a south-westerly direction along the said boundary between the urban district of Briton Ferry and the borough of Port Talbot and continuing along the said boundary to the point at which it meets the high-water mark of ordinary tides on the south-east bank of the outer basin of the said Briton Ferry Dock thence proceeding north-eastward along the high-water mark of ordinary tides on the said south-east bank to the south-western face of the east pier of the said dock entrance gate and thence to the point on the north-eastern face of the said pier first hereinbefore mentioned.

(b) So much of the borough of Port Talbot as is contained within a line or imaginary line drawn from a point in the boundary of the borough of Port Talbot two hundred and ninety feet or thereabouts measured in a southerly direction from the south-east corner of the building of the Albion Steel Works of the Briton Ferry Steel Company Limited and three hundred and eighty feet or thereabouts measured in a south-westerly direction from the most southerly angle of the building of the works of the Whitford Steel Sheet and Galvanising Company Limited and one thousand five hundred and twenty-five feet or thereabouts measured in an easterly direction from the centre of the mooring post on the south jetty at the entrance to the outer basin of the Briton Ferry Dock which said buildings and jetty are shown on the $\frac{1}{2500}$ Ordnance map 1918 edition (Glamorgan sheet XXIV. 8) in a direction thirty-four degrees and twenty-seven minutes west of true south to the point at which such line or imaginary line meets the low-water mark of ordinary tides in Swansea Bay Bristol Channel thence along the said low-water mark in a westerly direction to the edge of the channel of the River Neath at low-water mark of ordinary tides thence north-westwards to the boundary between the borough of Port Talbot and the rural district of Neath at the mouth of the channel of the River Neath thence north-eastward along the said boundary

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 Act, 1922.

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 Neath and continuing eastward along the boundary of the said
 borough of Port Talbot until it reaches the point in the
 said boundary of the borough of Port Talbot first hereinbefore
 described.

Section 51.

THE THIRD SCHEDULE.

PROVISIONS OF ORDER OF 1921 REPEALED.

Article 9 (Number of councillors and aldermen).
Article 10 (Division into wards).
Article 11 (Election of councillors and aldermen).
Article 12 (Retirement of councillors and aldermen).
Article 19 (Town clerk and other officers continued.)
Subdivision (1) of Article 25 (Adoptive Acts).
Subdivisions (1) and (3) (a) of Article 26 (Powers under
section 33 or 34 of Act of 1894 and under the Act of 1907).
Subdivisions (1) (2) and (3) of Article 29 (Electoral divisions).
Article 31 (County police).
Article 35 (Guardians).
Article 36 (Rural district councillors).
Article 61 (For the protection of the Great Western Railway
Company and others).

Section 149.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF NEATH.

By virtue of the Neath Corporation Act 1922 and of other
their powers in that behalf them enabling the mayor aldermen
and burgesses of the borough of Neath (hereinafter referred to
as "the Corporation") in consideration of the sum of
 pounds (hereinafter referred to as "the principal
sum") paid to the treasurer of the borough by
 (hereinafter referred to as "the mortgagee") do
hereby grant and assign unto the mortgagee (his) executors
administrators and assigns such proportion of the revenues of
the Corporation including the revenues of the Corporation
from time to time arising from any land undertaking or other

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property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at the office of the borough treasurer (subject as hereinafter provided) on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the mayor or the town clerk of the borough for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of one thousand nine hundred and .

Town Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and [and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum].

Dated this day of one thousand nine hundred and .

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FORM OF TRANSFER OF MORTGAGE.

I (the within-named) of in
consideration of the sum of pounds paid to me
by of (hereinafter referred
to as "the transferee") do hereby transfer to the transferee (his)
executors administrators and assigns (the within-written security)
(the mortgage number of the revenues of the
mayor aldermen and burgesses of the borough of Neath bearing
date the day of) and all my
right and interest under the same subject to the several conditions
on which I hold the same at the time of the execution hereof
and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security
subject to the same conditions.

Dated this day of one thousand
nine hundred and

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